

Court No. - 32

Case :- WRIT - C No. - 47757 of 2015

Petitioner :- Bihari Lal (Deceased)

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Ram Chandra Srivastava, Manoj Kumar Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

Heard learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondent no.3.

The contention of the learned counsel for the petitioner is that the petitioner has got electricity connection 1 K.W. in the year 1995, who died in the year 2009 and the electricity bill has been send against the name of dead person.

Per contra, learned counsel for the respondents submits that this petition has been filed by Girish Kumar son of Bihari Lal (deceased) and the petitioner had informed to move application for substitution of his name of his father but he has consumed the electricity without doing so.

In rebuttal, learned counsel for the petitioner has drawn our attention on paragraph 8 of the writ petition and submits that the electricity connection was permanently disconnect in the year 2000 hence he is not liable to pay any dues after that period.

After hearing learned counsel for the parties, we are of the opinion that petitioner has alternative remedy under Section 17.10 U. P. Electricity Supply Code, 2005.

During course of argument learned counsel for the petitioners has made innocuous prayer for deciding the representation made by the petitioner which is pending before respondent no.3, Executive Engineer (Prescribed Authority) Vidhyut Vitran Khand Robertsganj, District-Sonbhadra.

In view of the aforesaid, without going into the merits of the case, this petition is disposed of with the direction to the competent authority to decide the representation of the petitioner, which is said to be pending before him by a reasoned speaking order preferably within a period of

six weeks from the date of production of a certified copy of this order.

It is made clear that this Court has not expressed any opinion on merits as we have not gone into the merits of the petitioner's claim and thus decision of the concerned competent authority will be his independent exercise as may be permissible in law.

In the meantime no action shall be taken against the petitioner till the order is passed by respondent no.3, which shall also be communicated to the petitioner.

With the aforesaid directions, this petition stands disposed of.

Order Date :- 25.8.2015

Fhd.